



2026:AHC-LKO:43390

**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

APPLICATION U/S 528 BNSS No. - 2047 of 2026

Shah Faisal

.....Applicant(s)

Versus

State Of Uttar Pradesh Through Additional Chief
Secretary, Home And 4 Others

.....Opposite
Party(s)

Counsel for Applicant(s) : Pawan Verma, Arvind Kumar Maurya,
Kanchan

Counsel for Opposite Party(s) : G.A.

Court No. - 16

HON'BLE SHREE PRAKASH SINGH, J.

Heard learned counsel for the applicant, Mr. Amit Kumar Dwivedi, learned counsel for the Electricity Department, and learned AGA for the State.

The instant application under Section 528 BNSS has been filed with the following prayers:-

"I. ISSUE AN ORDER OR DIRECTION quashing the Charge Sheet No. 544/2025 dated 10.09.2025, as well as the entire proceedings of Sessions Case/2082 of 2025 (State vs. Shah Faisal), arising out of F.I.R. No.1466/2022, registered under Section 135 of the Electricity Act, 2003, at Police Station Anti-Power Theft (APT), District Sitapur, currently pending before the learned Special Judge (Electricity Act), Sitapur;

II. ISSUE AN ORDER OR DIRECTION setting aside the Inspection Report dated 02.11.2022 and the consequential Impugned Revenue Assessment of ₹5,96,266/-, being void initio and legally unsustainable due to gross non-compliance with the mandatory procedural requirements of Para 8.1 of the U.P. Electricity Supply Code, 2005, specifically regarding the lack of mandatory videography and the absence of independent public witnesses;

III. ISSUE AN ORDER OR DIRECTION to the Opposite Party No. 1 and 2 to constitute an independent inquiry/investigation into the departmental entrapment and the fraudulent role of the local departmental staff in the unauthorized installation of a government-grade transformer and departmental corruption of Opposite Parties No.

5, who extorted ₹2,05,000 from the Petitioner."

Learned counsel for the applicant submits that the applicant is innocent and he has been falsely implicated in the present case with false and frivolous allegations. The applicant has not committed alleged offence.

On the other hand, learned AGA has submitted that prima facie, the offence is made out against the applicant. It is further submitted that these are disputed questions of fact, which can be adjudicated only after adducing the evidence. He further controverts the submissions of learned counsel for the applicant on the ground that this is not a stage where minute and meticulous exercise with regard to the appreciation of evidence may be done and truthfulness of the allegations could only be tested in a criminal trial and, therefore, the application is misconceived and liable to be dismissed.

At this stage, learned counsel for the applicant submits that he does not want to press the application and seeks liberty to file bail application before the learned trial court which may be decided in view of law laid by Hon'ble Supreme Court in the case of **Satender Kumar Antil Vs. Central Bureau of Investigation and another, (2022) 10 SCC 51**.

Learned A.G.A. has no objection to the prayer made by learned counsel for the applicant.

On due consideration to the submissions of learned counsel for the parties, it is provided that in case, the applicant appears before the trial court within two weeks from today and files bail application, the same shall be decided expeditiously in view of law laid down in the case of Satender Kumar Antil versus Central Bureau of Investigation and another (**supra**).

The application is **disposed off** accordingly.

(Shree Prakash Singh,J.)

July 6, 2026
Ram Murti